

UNION AND TERRITORY

ARTICLES 1-4 • TERRITORIAL COMPOSITION • REORGANISATION • CESSION LIMIT • FEDERAL CONSULTATION

CORE THESIS: an indestructible Union with an adaptable internal map, legal flexibility gains legitimacy through consultation and viable transition.

SOURCE CONTROL: Constitution → India Code → Supreme Court → official current status → local OCR polity books

00

STAGE 00ARTICLES 1-4: THE TERRITORIAL POWER HIERARCHY

ARTICLES 1-4THE TERRITORIAL POWER HIERARCHYARTICLE 1INDIA, THAT IS BHARATUNION OF STATES TERRITORYSTATES + UNION TERRITORIES + ACQUIRED TERRITORIESARTICLE 2PARLIAMENT ADMITS INTO UNION OR ESTABLISHES NEW STATES

India, that is Bharat = Union of States territory + States + Union territories +

ARTICLE 2

Parliament admits into Union or establishes new States

CONSTITUTIONAL BASIS / ARTICLE

ARTICLE 1
India, that is Bharat = Union of States territory = States + Union territories + acquired territories
ARTICLE 2

POWER / PROCEDURE

Parliament admits into Union or establishes new States
ARTICLE 3
Parliament forms new States and alters area, boundary or name

CHECK / LIMIT

ARTICLE 4 consequential First/Fourth Schedule changes and supplemental provisions laws under Articles 2 and 3 are not amendments under Article 368
FIRST SCHEDULE = living ledger of States and Union territories
PRINCIPLE: States have constitutional status, but no right to secede.

FEDERAL / RIGHTS IMPACT

MUST REMEMBER: Articles 1-4 and the First/Fourth Schedules separate territorial identity, admission
or establishment, internal reorganisation and consequential schedule changes within an indestructible Union.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (ARCHITECTURE): Articles 1 to 4 place States, Union Territories and acquired territory within India, but assign them different constitutional positions within the federation.

01

STAGE 01ARTICLE 3 PROCEDURE: CONSULTATION WITHOUT A STATE VETO

ARTICLE 3 PROCEDURECONSULTATION WITHOUT A STATE VETOPRESIDENT'S RECOMMENDATION REQUIREDBILL AFFECTS AREA, BOUNDARY OR NAME OF A STATE?PRESIDENT REFERS BILL TO AFFECTED STATE LEGISLATURESPECIFIES TIME FOR EXPRESSING VIEWSMAY EXTEND THAT TIME

PRESIDENT'S RECOMMENDATION REQUIRED

BILL affects area, boundary or name of a State?

YES — President refers bill to affected State legislature

SPECIFIES TIME FOR EXPRESSING VIEWS

MAY EXTEND THAT TIME

CONSTITUTIONAL BASIS / ARTICLE

PRESIDENT'S RECOMMENDATION REQUIRED
BILL affects area, boundary or name of a State?
YES — President refers bill to affected State legislature

POWER / PROCEDURE

SPECIFIES TIME FOR EXPRESSING VIEWS
MAY EXTEND THAT TIME
Parliament is not bound by those views

CHECK / LIMIT

NO State affected — proviso referral does not arise in that form
PARLIAMENT passes by ordinary legislative majority
PRESIDENTIAL ASSENT — territorial and Schedule changes

FEDERAL / RIGHTS IMPACT

State view is required consultation, not consent.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (PROCEDURE): Article 3 requires presidential recommendation and State consultation, but Parliament is not bound by the State's view and Union Territories lack an equivalent proviso right.

02

STAGE 02ARTICLE 2, ARTICLE 3 AND FOREIGN-TERRITORY TRANSFER ARE DISTINCT

ARTICLE 2, ARTICLE 3 AND FOREIGN-TERRITORY TRANSFER ARE DISTINCTQUESTION CONSTITUTIONAL ROUTE ADMIT OR ESTABLISH NEW STATE ARTICLE100TH AMENDMENT, 2015 CONSTITUTIONAL ROUTE USED FOR INDIA-BANGLADESH LAND-BOUNDARYBERUBARI UNION (1960) CESSION OF INDIAN TERRITORY CANNOT BEMAGANBHAI ISHWARBHAI PATEL (1969) BOUNDARY SETTLEMENT DIFFERS FROM CESSION.

CONSTITUTIONAL BASIS / ARTICLE

QUESTION CONSTITUTIONAL ROUTE admit or establish new State Article 2 reorganise existing Indian unit Article 3 acquire foreign
Article 1 can accommodate cede Indian territory constitutional amendment under Article 368 settle uncertain boundary no cession

POWER / PROCEDURE

BERUBARI UNION (1960) cession of Indian territory cannot be completed through Article 3 alone.
MAGANBHAI ISHWARBHAI PATEL (1969) boundary settlement differs from cession.

CHECK / LIMIT

100TH AMENDMENT, 2015 constitutional route used for India-Bangladesh land-boundary exchange
QUESTION CONSTITUTIONAL ROUTE admit or establish new State Article 2 reorganise existing Indian unit Article 3 acquire foreign

FEDERAL / RIGHTS IMPACT

Article 1 can accommodate it cede Indian territory constitutional amendment under Article 368 settle uncertain boundary no cession
BERUBARI UNION (1960) cession of Indian territory cannot be completed through Article 3 alone.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (CESSION): The sovereignty test separates cession from boundary settlement: surrender of accepted Indian territory requires Article 368, while genuine ascertainment or implementation of a disputed boundary may proceed without constitutional amendment.

03

STAGE 03FIRST SCHEDULE AS A CONSTITUTIONAL CHANGE LEDGER

FIRST SCHEDULE AS A CONSTITUTIONAL CHANGE LEDGERTERRITORIAL LAW UNDER ARTICLE 2 OR 3 CHANGES FIRSTSTATE AND UNION-TERRITORY DESCRIPTION MAY CHANGE FOURTH SCHEDULERAJYA SABHA SEAT ALLOCATION MAY INCLUDE SUPPLEMENTAL, INCIDENTAL ANDARTICLE 4 DECLARATION SUCH LAW IS NOT DEEMED ANORDINARY LEGISLATIVE ROUTEARTICLE 4 SUPPORTS TERRITORIAL REORGANISATIONIT DOES NOT BYPASS ARTICLE 368 FOR UNRELATED CONSTITUTIONAL

TERRITORIAL LAW UNDER ARTICLE 2 OR 3 changes First Schedule: State and Union-territory description may

change Fourth Schedule: Rajya Sabha seat allocation may include supplemental, incidental and consequential provisions

ARTICLE 4 DECLARATION such law is not deemed an Article 368 amendment

ORDINARY LEGISLATIVE ROUTE

Article 4 supports territorial reorganisation

CONSTITUTIONAL BASIS / ARTICLE

TERRITORIAL LAW UNDER ARTICLE 2 OR 3 changes First Schedule: State and Union-territory description may
change Fourth Schedule: Rajya Sabha seat allocation may include supplemental, incidental and consequential provisions

POWER / PROCEDURE

ARTICLE 4 DECLARATION such law is not deemed an Article 368 amendment
ORDINARY LEGISLATIVE ROUTE

CHECK / LIMIT

Article 4 supports territorial reorganisation
it does not bypass Article 368 for unrelated constitutional changes.

FEDERAL / RIGHTS IMPACT

TERRITORIAL LAW UNDER ARTICLE 2 OR 3 changes First Schedule: State and Union-territory description may
change Fourth Schedule: Rajya Sabha seat allocation may include supplemental, incidental and consequential provisions

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (LINGUISTIC): Linguistic reorganisation accommodated regional identity within a strong Union, showing that territorial flexibility can promote integration without treating language as the sole criterion.

04

STAGE 04INTEGRATION AND LINGUISTIC REORGANISATION, 1947-1956

INTEGRATION AND LINGUISTIC REORGANISATION, 1947-19561947-49 ACCESSION AND INTEGRATION OF PRINCIPALLY STATES1950 PART A, B, C AND D CLASSIFICATION BEGINS1948 DHAR COMMISSION CAUTIONS AGAINST LANGUAGE-ONLY REORGANISATION1949 JVP COMMITTEE POSTPONES LINGUISTIC REORGANISATION1952 POTTI SRIRAMULU'S DEATH INTENSIFIES ANDHRA DEMAND1953 ANDHRA STATE FORMED; STATES REORGANISATION COMMISSION APPOINTED1955 FAZL ALI COMMISSION REPORT

1947-49 accession and integration of princely states

1950 Part A, B, C and D classification begins

1948 Dhar Commission cautions against language-only reorganisation

1949 JVP Committee postpones linguistic reorganisation

1952 Potti Sriramulu's death intensifies Andhra demand

CONSTITUTIONAL BASIS / ARTICLE

1947-49 accession and integration of princely states
1950 Part A, B, C and D classification begins
1948 Dhar Commission cautions against language-only reorganisation

POWER / PROCEDURE

1949 JVP Committee postpones linguistic reorganisation
1952 Potti Sriramulu's death intensifies Andhra demand
1953 Andhra State formed: States Reorganisation Commission appointed

CHECK / LIMIT

1955 Fazl Ali Commission report
1956 States Reorganisation Act + Seventh Amendment language accepted with unity, administration and economy
Part classifications abolished

FEDERAL / RIGHTS IMPACT

States and Union territories reorganised
Language became accommodation's basis, not an automatic sole test.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (FEDERAL): Article 3 is a centralising safety valve: its flexibility can absorb regional demands, but legitimacy depends on consultation, transparency and negotiated transition because affected States possess no constitutional veto.

05

STAGE 05POST-1956 MAP-MAKING: REORGANISATION, CREATION AND RENAMING

POST-1956 MAP-MAKINGREORGANISATION, CREATION AND RENAMING1956 SETTLEMENT1960 MAHARASHTRA + GUJARAT1963 NAGALAND1966 HARYANA + CHANDIGARH; PUNJAB REORGANISED1971 HIMACHAL PRADESH1972 MEGHALAYA, MANIPUR AND TRIPURA

1960 Maharashtra + Gujarat

1963 Nagaland

1966 Haryana + Chandigarh; Punjab reorganised

CONSTITUTIONAL BASIS / ARTICLE

1956 SETTLEMENT
1960 Maharashtra + Gujarat
1963 Nagaland
1966 Haryana + Chandigarh; Punjab reorganised

POWER / PROCEDURE

1971 Himachal Pradesh
1972 Meghalaya, Manipur and Tripura
1975 Sikkim becomes a State
1987 Mizoram, Arunachal Pradesh and Goa

CHECK / LIMIT

2000 Chhattisgarh; Uttarakhand and Jharkhand
2014 Telangana
2019 Jammu and Kashmir reorganised into two Union territories
RENAMING uses Article 3 when a State name changes.

FEDERAL / RIGHTS IMPACT

CURRENT MAP IN SOURCE: 28 States and 8 Union territories
CLOSE DISTINCTION: A State legislature supplies non-binding views under Article 3
Article 4 uses ordinary legislative procedure, while foreign cession requires Article 368 under
Berubari Union (1960) and a mere boundary settlement may not.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (CURRENT): Article 3 is a centralising safety valve: its flexibility can absorb regional demands, but legitimacy depends on consultation, transparency and negotiated transition because affected States possess no constitutional veto.

06

STAGE 06JAMMU AND KASHMIR REORGANISATION AS AN ARTICLE 3 STRESS TEST

JAMMU AND KASHMIR REORGANISATION AS AN ARTICLE 3 STRESS2019 REORGANISATIONJ&K UT WITH LEGISLATURE + LADAKH UT WITHOUT LEGISLATUREIN RE ARTICLE 370 (2023 INSC 1058)STATE LEGISLATURE'S ARTICLE 3 VIEWS ARE RECOMMENDATORY CARVING LADAKHJ&K STATEHOOD RESTORATION DIRECTED AT THE EARLIESTSTATUS CHECKED 28 AUG 2026NO ENACTED RESTORATION LOCATED; LADAKH STATEHOOD/SIXTH-SCHEDULE DEMANDS REMAIN UNDER

2019 REORGANISATION — J&K UT WITH LEGISLATURE + LADAKH UT WITHOUT LEGISLATURE

IN RE ARTICLE 370 (2023 INSC 1058)

State legislature's Article 3 views are recommendatory carving Ladakh as a UT upheld

under Article 3(a) + Explanation I whole-State-to-two-UT conversion question NOT finally decided

CONSTITUTIONAL BASIS / ARTICLE

2019 REORGANISATION — J&K UT WITH LEGISLATURE + LADAKH UT WITHOUT LEGISLATURE
IN RE ARTICLE 370 (2023 INSC 1058)

POWER / PROCEDURE

State legislature's Article 3 views are recommendatory carving Ladakh as a UT upheld
under Article 3(a) + Explanation I whole-State-to-two-UT conversion question NOT finally decided

CHECK / LIMIT

J&K Statehood restoration directed at the earliest
STATUS CHECKED 28 AUG 2026

FEDERAL / RIGHTS IMPACT

No enacted restoration located; Ladakh Statehood/Sixth-Schedule demands remain under dialogue.
EXAM LIMIT: do not say the Court generally approved every State-to-UT conversion.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (FINAL): Article 3 is a centralising safety valve: its flexibility can absorb regional demands, but legitimacy depends on consultation, transparency and negotiated transition because affected States possess no constitutional veto.

07

STAGE 07NEW-STATE DEMAND: DEMOCRATIC CLAIM VERSUS VIABLE FEDERAL UNIT

NEW-STATE DEMANDDEMOCRATIC CLAIM VERSUS VIABLE FEDERAL UNITCLAIM FOR NEW STATE IDENTITY + DISTANCE FROM CAPITALCONSTITUTIONAL RESPONSEARTICLE 3 REORGANISATION AFTER REQUIRED CONSULTATION

TESTS ADMINISTRATIVE VIABILITY FISCAL AND RESOURCE SUSTAINABILITY MINORITY PROTECTIONSMALLER CAN IMPROVE ACCESS; IT DOES NOT AUTOMATICALLY PRODUCE

CONSTITUTIONAL BASIS / ARTICLE

CLAIM FOR NEW STATE identity + distance from capital + uneven development + administrative access
CONSTITUTIONAL RESPONSE

POWER / PROCEDURE

Article 3 reorganisation after required consultation
TESTS administrative viability fiscal and resource sustainability minority protection inside proposed unit water, capital.

CHECK / LIMIT

assets, debt and employees security and territorial integrity democratic legitimacy and transition costs
Smaller can improve access; it does not automatically produce capacity or equality.

FEDERAL / RIGHTS IMPACT

CLAIM FOR NEW STATE identity + distance from capital + uneven development + administrative access
CONSTITUTIONAL RESPONSE

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (OPENING): The framers wanted the Constitution to show that India is federal in structure, but not the product of a treaty among pre-existing sovereign units.

08

STAGE 08EXACT VERIFIED PQO CONTROLS: WORDING, DEMAND AND ANSWER OWNERSHIP

EXACT VERIFIED PQO CONTROLSWORDING, DEMAND AND ANSWER OWNERSHIP2025 PRELIMS GS-I Q52ARUNACHAL PRADESH + NAGALAND + TRIPURA PAIRSOFFICIAL KEY C ALL THREESTATEHOOD ACT AND ACCOMPANYING THIRTEENTH AMENDMENT ARE NOT MUTUALLY2018 MAINS GS-I Q12

2019 MAINS GS-I Q12

2022 MAINS GS-I Q11

15 MARKS

250 WORDS

CONSTITUTIONAL BASIS / ARTICLE

2025 PRELIMS GS-I Q52
Arunachal Pradesh + Nagaland + Tripura pairs — official key C: all three.
Nagaland: Statehood Act and accompanying Thirteenth Amendment are not mutually exclusive.

POWER / PROCEDURE

2018 MAINS GS-I Q12
15 MARKS
250 WORDS

CHECK / LIMIT

"Discuss whether formation of new states in recent times is beneficial or not for the economy of India."
Answer demand = economic benefit, capacity, fiscal viability and transition costs.
2022 MAINS GS-I Q11

FEDERAL / RIGHTS IMPACT

Political and administrative reorganization has been a continuous ongoing process since
the mid-nineteenth century — prove continuity with colonial + post-1947 examples.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Political and administrative reorganization has been a continuous ongoing process since the mid-nineteenth century — prove continuity with colonial + post-1947 examples.

09

STAGE 09EXACT 10/15/20-MARK ARCHITECTURE: FLEXIBLE TERRITORY WITHIN AN INDESTRUCTIBLE UNION

EXACT 10/15/20-MARK ARCHITECTUREFLEXIBLE TERRITORY WITHIN AN INDESTRUCTIBLE UNION10 MARKS150 WORDSARTICLE 1 THESISARTICLES 2/3 DISTINCTIONARTICLE 3 PROCEDUREONE CASE

10 MARKS / 150 WORDS

Article 1 thesis — Articles 2/3 distinction — Article 3 procedure — one case —

15 MARKS / 250 WORDS

Articles 1-4 + First/Fourth Schedules — history — case law —
federal balance — graded

20 MARKS / 250 WORDS

CONSTITUTIONAL BASIS / ARTICLE

10 MARKS / 150 WORDS
Article 1 thesis — Articles 2/3 distinction — Article 3 procedure — one case — verdict.
15 MARKS / 250 WORDS

POWER / PROCEDURE

Articles 1-4 + First/Fourth Schedules — history — case law — federal balance — graded verdict.
20 MARKS / 250 WORDS
Add chronology as argument, Explanation I State/UT nuance, exact J&K holding, criticism and reform.

CHECK / LIMIT

Use validity — legitimacy — prudence: never substitute a current proposal for enacted law.
ANSWER CONTROL
Every model: evidence — mechanism — analysis — limit — verdict — answer-specific improvement.

FEDERAL / RIGHTS IMPACT

Articles 1-4 + First/Fourth Schedules — history — case law — federal balance — graded verdict.

MECHANISM / VERDICT — Every model: evidence — mechanism — analysis — limit — verdict — answer-specific improvement.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: evidence — mechanism — analysis — limit — verdict — answer-specific improvement.

10

STAGE 10QUALIFIED FINAL SYNTHESIS: FLEXIBLE MAP, PROTECTED SOVEREIGNTY, NEGOTIATED LEGITIMACY

QUALIFIED FINAL SYNTHESISFLEXIBLE MAP, PROTECTED SOVEREIGNTY, NEGOTIATED LEGITIMACYINTERNAL FLEXIBILITYARTICLES 3-4 PERMIT ORDINARY-LAW REORGANISATION AFTER CONSTITUTIONALLY REQUIRED CONSULTATION.SOVEREIGNTY LIMIT

BERUBARI UNION (1960) EXCLUDES FOREIGN CESSION; ARTICLE 368 SUPPLIES FEDERAL LEGITIMACYSTATE VIEWS ARE NOT A VETO, BUT TRANSPARENT CONSULTATION

INTERNAL FLEXIBILITY

Articles 3-4 permit ordinary-law reorganisation after constitutionally required consultation.

GOVERNMENT LIMIT

Berubari Union (1960) excludes foreign cession; Article 368 supplies the constitutional route.

CONSTITUTIONAL BASIS / ARTICLE

INTERNAL FLEXIBILITY
Articles 3-4 permit ordinary-law reorganisation after constitutionally required consultation.
SOVEREIGNTY LIMIT

POWER / PROCEDURE

Berubari Union (1960) excludes foreign cession; Article 368 supplies the constitutional route.
FEDERAL LEGITIMACY
State views are not a veto, but transparent consultation, viability and negotiated transition matter.

CHECK / LIMIT

CURRENT-LAW DISCIPLINE
28 States + 8 UTs; J&K remains a UT with Legislature on the 28 Aug 2026 check.
FINAL VERDICT

FEDERAL / RIGHTS IMPACT

Article 3 is a centralising safety valve whose legitimacy depends on using
flexibility as constitutional accommodation, not as a substitute for federal trust.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 3 is a centralising safety valve whose legitimacy depends on using flexibility as constitutional accommodation, not as a substitute for federal trust.

11

STAGE 11CURRENT TERRITORIAL STATUS AND AUTHORITATIVE-SOURCE GATE

CHECKED 7 SEP 202528 STATES + 8 UNION TERRITORIESJ&K: UT WITH LEGISLATURELADAKH: UT WITHOUT LEGISLATURE

OPERATIVE MAP

J&K LEGAL STATUS

SUPREME COURT LIMIT

EXAM SOURCE RULE

ANSWER-GRABBING LINE: current territorial claims become constitutional facts only through an operative legal instrument.

E

EXTRASUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENTEXPLANATION I IS A FAVOURITE CLOSE-OPTION TRAPIN ARTICLE 3, 'STATE' INCLUDES UNION TERRITORIES FOR CLAUSESTHIS IS WHY PARLIAMENT MAY RESTRUCTURE UTs WITHOUT ATHE FIRST SCHEDULE AND FOURTH SCHEDULE DO DIFFERENT JOBS.

THE FIRST SCHEDULE TRACKS TERRITORIAL UNITS; THE FOURTH SCHEDULE

ARTICLE 4 LETS A REORGANISATION LAW ADJUST BOTH TOGETHER

ORDINARY LAW IS NOT A LESSER CONSTITUTIONAL ACT IN

OPTIONAL DOCTRINE / CASE

ADVANCED LIMIT

COMPARATIVE NUANCE

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

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